RULES OF APPELLATE PROCEDURE

NOTICE

Notice is hereby given that the following amendments to the Rules of Appellate Procedure were adopted to take effect January 1, 2027, except the amendments to Sections 60-4, 62-6 and 85-2, pertaining to generative artificial intelligence (generative AI), which were adopted to take effect upon publication in this Connecticut Law Journal on July 14, 2026. The amendments were approved by the Supreme Court on June 30, 2026, and by the Appellate Court on June 23, 2026. With respect to Sections 60-4, 62-6 and 85-2, the courts have waived the provision of Section 86-1 requiring publication of rules sixty days prior to their effective date.

Attest:

Carl D. Cicchetti

Chief Clerk Appellate

INTRODUCTION

Contained herein are amendments to the Rules of Appellate Procedure. These amendments are indicated by bold brackets for deletions and underlined text for added language. This material should be used as a supplement to the Connecticut Practice Book until the 2027 edition of the Practice Book becomes available.

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RULES OF APPELLATE PROCEDURE

AMENDMENTS TO THE RULES OF APPELLATE PROCEDURE

CHAPTER 60
GENERAL PROVISIONS RELATING TO APPELLATE RULES AND APPELLATE REVIEW

Sec. 60-4. Definitions

"Administrative appeal" shall mean an appeal from a judgment of the Superior Court concerning the appeal to that court from a decision of any officer, board, commission or agency of the state or of any political subdivision of the state.

"Appellant" shall mean the party, or parties if an appeal is jointly filed, taking the appeal.

"Appellee" shall mean all other parties in the trial court at the time of judgment, unless after judgment the matter was withdrawn as to them or unless a motion for permission not to participate in the appeal has been granted by the court.

"Certificate of interested entities or individuals" is a certificate filed pursuant to court order by counsel of record for a party that is an entity as defined in this rule. The certificate shall list for that party: (1) any parent entities and (2) all entities or individuals owning or controlling an interest of 10 percent or more of that party. If there are no other interested entities or individuals, a certificate indicating that information is required. The certificate shall also state whether the party knows of any direct or indirect ownership, controlling or legal interest for that party that counsel of record thinks could reasonably require a judge to disqualify himself or herself under Rule 2.11 of the Code of Judicial Conduct. The court may order a party to supplement its certificate of interested entities or individuals to include any direct or indirect ownership or controlling or legal interest for any parent entities or listed

interested entities, and so on, until the certificate lists all of the parent entities, interested entities, and interested individuals for that party and its affiliates. Counsel of record has a continuing duty to amend the certificate of interested entities or individuals during the pendency of the appeal if any changes occur.

"Counsel of record" shall include all attorneys, law firms and self-represented parties appearing in the trial court at the time of the initial appellate filing, unless an exception pursuant to Section 62-8 applies, all attorneys, law firms and self-represented parties who filed the appellate matter, and all attorneys, law firms and self-represented parties who file an appearance in the appellate matter.

"Entity" means any corporation, limited liability company, partnership, limited liability partnership, trust, joint venture, firm or association that is not a governmental entity or its agencies.

"Filed" shall mean the receipt by the appellate clerk of a paper or document by electronic submission pursuant to Section 60-7. If an exemption to electronic filing has been granted or if the electronic filing requirements do not apply, filed shall mean receipt of the paper or document by hand delivery, by first class mail or by express mail delivered by the United States Postal Service or an equivalent commercial service. If a document must be filed by a certain date under these rules or under any statutory provision, the document must be received by the appellate clerk by the close of business on that date; it is not sufficient that a document be mailed by that date to the appellate clerk unless a rule or statutory provision expressly so computes the time.

"Generative Artificial Intelligence" or "generative AI" shall have the same meaning as used in Section 4-9.

"Issues" shall include claims of error, certified questions and questions reserved.

"Motion" shall include applications and petitions, other than petitions for certification. A preappeal motion is one that is filed prior to or independent of an appeal.

"Notice by the appellate clerk" shall mean sending to the E-Services electronic inbox for counsel of record. If counsel of record is excluded or exempt from electronic filing pursuant to Section 60-8, or if notice is being sent to a nonappearing party, notice shall mean sending by first class mail through the United States Postal Service.

"Paper" and "Document" shall include an electronic submission that complies with the procedures and standards established by the chief clerk of the appellate system under the direction of the administrative judge of the appellate system and a paper or document created in or converted to a digital format by the Judicial Branch.

"Petition" does not include petitions for certification unless the context clearly requires.

"Record" shall include the case file, any decisions, documents, transcripts, recordings and exhibits from the proceedings below, and, in appeals from administrative agencies, the record returned to the trial court by the administrative agency.

"Requests" shall include correspondence and notices as permitted by these rules.

"Submission" shall mean a "paper" or a "document" and shall include an electronic submission that complies with the procedures and standards established by the chief clerk of the appellate system under the direction of the administrative judge of the appellate system.

(For additional definitions, see Secs. 62-2 and 76-6.)

COMMENTARY: These amendments add "law firms" to the definition of "counsel of record," define "notice by the appellate clerk" in order to alert parties of the current practice of electronic notice being sent to counsel of record's E-Services electronic inbox or via the United States Postal Service to those who are exempt from e-filing, and define the term "generative artificial intelligence" or "generative AI."

CHAPTER 62
CHIEF JUDGE, APPELLATE CLERK AND DOCKET: GENERAL ADMINISTRATIVE MATTERS

Sec. 62-6. Signature on Documents

(a) All documents shall be signed by counsel of record. Attorneys shall sign electronically filed documents and electronically submitted briefs by entering their individual juris number during the filing transaction. Self-represented parties shall sign electronically filed documents and electronically submitted briefs by entering their E-Services user identification during the filing transaction. If a document or brief is electronically filed by more than one self-represented party, it must include the E-Services user identification or written signature of each self-represented party filing the document.

(b) All documents, except Judicial Branch forms, must include a signature block at the end of the document or brief, but before the appendix, if any. The signature block shall include the name, phone number, address, and, unless filed by counsel of record that are excluded from electronic filing, email address for counsel of record filing the document.

(c) An attorney may assist a client in preparing a document or brief to be signed and filed by the client. In such cases, the attorney shall insert the notation "prepared with assistance of counsel" on any document or brief prepared by the attorney. The attorney is not required to sign the document or brief, and the filing of such a document or brief shall not constitute an appearance by the attorney.

(d) The signing of any paper shall constitute a certificate that the signer has read such document, that to the best of the signer's knowledge, information and belief there is good ground to support it, that it is not solely interposed for delay, and that the signer has complied with the requirements of Section 4-7 regarding personal identifying information and Section 4-9 regarding generative AI.

COMMENTARY: The purpose of this amendment is to address the use of generative artificial intelligence (generative AI) in court filings.

Sec. 62-7. Matters of Form; Filings; Delivery and Certification to Counsel of Record

(a) Counsel of record must file papers in a timely manner and in compliance with the appellate rules. The appellate clerk may return any noncomplying papers and shall indicate on the return how the papers have failed to comply with the appellate rules. If a party is exempt from the requirements of electronic filing pursuant to Section 60-8, the clerk shall upload copies of the noncomplying papers into the file before returning them. When a timely, noncomplying document is returned, a complying document will be deemed timely filed if it is refiled with the appellate clerk within seven days of the notice date indicated on the return. If a party is exempt from the requirements of electronic filing pursuant to Section 60-8, and a timely, noncomplying document is returned, a complying document will be deemed timely filed if it is refiled with the appellate clerk within fifteen days of the notice date indicated on the return. Subsequent returns for the same filing will not initiate a new refiling period. The refiling period shall not be extended. The time for responding to any paper shall not start to run until a complying paper is filed.

(b) All papers shall contain a certification that a copy has been delivered to each other counsel of record, except as provided in Section 63-4 (a) (4), which certification shall include the names and email addresses for counsel of record that were sent the document electronically, or the names and physical addresses for counsel of record that were sent or delivered a paper copy of the document. Papers filed by a party exempt from the requirements of electronic filing pursuant to Section 60-8, must also include certifications that (1) the document has been redacted or does not contain any names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law; and (2) the document complies with all applicable Rules of Appellate Procedure.

Parties that electronically file documents comply with (b) (1) and (b) (2) during the electronic filing transaction. Any request to deviate from the requirement regarding personal identifying information shall be filed with the appellate clerk pursuant to Section 67-2 (g) or 67-2A (g). Briefs and appendices require additional certifications pursuant to Section 67-2 or 67-2A. Other certifications may be required by the rules under which specific documents are filed.

(c) Any counsel of record who files a document electronically with the court must deliver it electronically to all other counsel of record, except as provided in Section 63-4 (a) (4), unless **[**the intended recipient has notified the appellate clerk and all other counsel of record in writing that the recipient declines to accept electronic delivery of documents or**]** the intended recipient is exempt from the requirements of electronic filing pursuant to Section 60-8. Any counsel of record who has signed an electronically filed document shall be deemed to have consented to electronic delivery under this section. Delivery by email is complete upon sending the electronic notice unless the party sending notice learns that the attempted delivery did not reach the email address of the intended recipient.

If the intended recipient has declined to accept electronic delivery or is exempt from the requirements of electronic filing, a document shall be delivered to counsel of record by hand or by first class or express mail delivered by the United States Postal Service or an equivalent commercial service, postage prepaid, to the last known address of the intended recipient.

In cases where a party reasonably believes that a court order prohibits the delivery of documents to any other counsel of record, that party may request to be excused from delivery requirements by filing a request using form (JD-SC-###). If the Supreme or Appellate Court grants the request, the appellate clerk will provide notice of the party's filings to counsel of record named in the request. If the Supreme or

Appellate Court denies the request, the movant must comply with the delivery requirements. While the request is pending, the appellate clerk will provide notice of the party's filings to counsel of record named in the request.

COMMENTARY: These amendments prevent an attorney from declining the electronic service of filings and allow parties to request permission from the Supreme Court or the Appellate Court to be excused from the notice requirement in matters involving a protective order that may prevent one party from sending copies of filings to another party.

CHAPTER 63
FILING THE APPEAL; WITHDRAWALS

Sec. 63-4. Additional Papers To Be Filed by Appellant and Appellee Subsequent to the Filing of the Appeal

(a) Within ten days of filing an appeal, the appellant shall also file with the appellate clerk the following:

(1) A preliminary statement of the issues (JD-SC-038) intended for presentation on appeal. If any appellee wishes to: (A) present for review alternative grounds upon which the judgment may be affirmed; (B) present for review adverse rulings or decisions of the court which should be considered on appeal in the event the appellant is awarded a new trial; or (C) claim that a new trial rather than a directed judgment should be ordered if the appellant is successful on the appeal, that appellee shall file a preliminary statement of issues within twenty days from the filing of the appellant's preliminary statement of the issues. Except as otherwise provided, a party may as of right file amendments to the preliminary statement of issues at any time until that party's brief is filed.

Whenever the failure to identify an issue in a preliminary statement of issues prejudices an opposing party, the court may refuse to consider such issue.

(2) A designation of the proposed contents of the clerk appendix (JD-SC-039) that is to be prepared by the appellate clerk under Section 68- 2A listing the specific documents docketed in the case file that the appellant deems are necessary to include in the clerk appendix for purposes of presenting the issues on appeal, including their dates of filing in the proceedings below, and, if applicable, their number as listed on the docket sheet. The appellant shall limit the designation to the documents referenced in Section 68-3A for inclusion in the clerk appendix. If any other party disagrees with the inclusion of any documents designated by the appellant, or deems it necessary to include other documents docketed in the case file in the clerk appendix, that party may, within seven days from the filing of the appellant's designation of the proposed contents of the clerk appendix, file its own designation of the proposed contents of the clerk appendix.

(3) A certificate stating that no transcript is deemed necessary (JD-SC-040) or a transcript order confirmation from the official court reporter pursuant to Section 63-8. If the appellant is to rely on any transcript delivered prior to the filing of the appeal, the transcript order confirmation shall indicate that an electronic version of a previously delivered transcript has been ordered.

If any other party deems any other parts of the transcript necessary that were not ordered by the appellant, that party shall, within twenty days of the filing of the appellant's transcript papers, file a transcript order confirmation for an order placed in compliance with Section 63-8. If the order is for any transcript delivered prior to the filing of the appeal, the transcript order confirmation shall indicate that an electronic version of a previously delivered transcript has been ordered.

If, after filing a certificate regarding transcript, a party determines that additional transcripts from proceedings in the trial court action that is on appeal are necessary for the presentation of the issues on appeal, that party may amend their certificate regarding transcript and file a tran-

script order confirmation from the official court reporter for the additional dates that are deemed necessary. Pursuant to this section, parties are permitted one amendment as of right to their transcript order, except as provided herein. The following amendments require permission of the court: (A) any additional amendments after the initial amendment permitted pursuant to this section; (B) any amendments that seek to add transcripts from a different trial court matter; (C) any amendments that seek to add hearing dates that occurred after the appeal was filed, except as provided in Section 61-9; (D) any amendments sought after a final order for the appellant's brief has been issued; and (E) any amendments sought after the appellant's brief has been filed.

(4) A docketing statement (JD-SC-041) containing the following information to the extent known or reasonably ascertainable by the appellant: (A) the names and addresses of all parties to the appeal, and the names, addresses, and email addresses of trial and appellate counsel of record, and the names and addresses of all entities and/or individuals having a legal interest in the cause on appeal sufficient to raise a substantial question whether a judge should be disqualified from participating in the decision on the case by virtue of that judge's personal or financial interest in any such entities and/or individuals; (B) the case names and docket numbers of all pending cases, including appeals to the Supreme Court or Appellate Court, that arise from substantially the same controversy as the cause on appeal or involve issues closely related to those presented by the appeal; (C) the case name and docket number with respect to any active criminal protective order, civil protective order, or civil restraining order that governs any of the parties to the appeal as well as the case name and docket number with respect to any such order that has expired or previously was requested but not issued; and (D) in criminal and habeas cases, the defendant's or petitioner's conviction(s) and sentence(s) that are the subject of the direct criminal or habeas appeal and whether the

defendant or petitioner is incarcerated. If additional information is or becomes known to, or is reasonably ascertainable by the appellee, the appellee shall file a docketing statement supplementing the information required to be provided by the appellant. Amendments to the docketing statement may be filed at any time.

When an appellant or an appellee is aware that one or more appellees have no interest in participating in the appeal, the appellant and any other appellees may be relieved of the requirement of certifying copies of filings to those appellees by designating the nonparticipating appellee(s) in a section of the docketing statement named "Nonparticipating Appellee(s)." This designation shall indicate that if no docketing statement in disagreement is filed, subsequent filings will not be certified to those appellees.

If an appellee disagrees with the nonparticipating designation, that appellee shall file a docketing statement indicating such disagreement within twenty days of the filing of that designation. All documents filed on or before the expiration of the time for an appellee to file a docketing statement in disagreement as stated above shall be delivered pursuant to Section 62-7 (b) to all counsel of record. If no docketing statement in disagreement is filed, subsequent filings need not be certified to nonparticipating appellees.

(b) If applicable, within ten days of filing an appeal, the appellant shall also file with the appellate clerk the following:

(1) A preargument conference statement (JDSC-028A) in matters that are eligible for a preargument conference pursuant to Section 63-10, if all parties participating in the appeal are interested in attending a preargument conference.

(2) A constitutionality notice, in all noncriminal cases where the constitutionality of a state statute, rule, regulation, or executive action is called into question. Said notice shall identify the statute, rule, regulation, or executive action; the name and address of the party questioning it;

and whether the constitutionality of the questioned item was upheld by the trial court. The appellate clerk shall deliver a copy of such notice to the attorney general. If a question becomes apparent to a party or to the court at any time after preliminary papers are filed, the party shall immediately file or amend the notice mandated by this section, and the court, even absent a party filing a notice, shall issue such notice. This section does not apply to habeas corpus matters based on criminal convictions, or to any case in which the attorney general is a party, has appeared on behalf of a party, or has filed an amicus brief in proceedings prior to the appeal.

(3) In matters in which documents are under seal, conditionally or otherwise, or limited as to disclosure, a notice identifying the time, date, scope and duration of the sealing order with a copy of the order. (See Section 77-2.)

(c) Failure to comply with this rule shall be deemed as sufficient reason to schedule a case for sanctions under Section 85-3 or for dismissal under Section 85-1.

(d) The use of the forms indicated in subdivisions (1), (2) and (3) of subsection (a) is optional. The party may instead draft documents in compliance with the rules.

COMMENTARY: This amendment reinstates language that was previously removed from this section regarding judicial disqualification.

Sec. 63-6. Waiver of Fees, Costs and Security—Civil Cases

If a party in any case where fees and costs may lawfully be waived is indigent and desires to appeal, that party may, within the time provided by the rules for taking an appeal, make written application to the trial court for relief from payment of fees, costs and expenses. The application must be under oath and recite, or it must be accompanied by an affidavit reciting, the grounds upon which the applicant proposes to appeal and the facts concerning the applicant's financial status. Where an application arises out of a habeas corpus proceeding, the applica-

tion shall be handled pursuant to Section 63-7. Where an application arises out of a child protection matter, the application shall be handled pursuant to Section 79a-4.

The judicial authority shall act promptly on the application for waiver of fees, costs and expenses. If the application is denied in whole or in part, and the applicant wishes to challenge that denial, the applicant shall file a written request for a hearing, pursuant to Section 8-2, within ten days of the issuance of notice of the denial of the application. The clerk of the trial court shall assign the application for a hearing within twenty days of the filing of the request and the judicial authority shall act promptly on the application following the hearing.

If the court is satisfied that the applicant is indigent and has a statutory or constitutional right to court appointed counsel or a statutory right to appeal without payment of fees, costs and expenses, the court may (1) waive payment by the applicant of fees specified by statute and of taxable costs, and (2) order that the necessary expenses of prosecuting the appeal be paid by the state. The court may not consider the relative merits of a proposed appeal in acting upon an application pursuant to this section except that the court may consider the criteria contained in General Statutes § 52-259b.

Before incurring any expense **[**in excess of $100, including the expense of obtaining a transcript of the necessary proceedings or testimony**]**, the applicant shall obtain the permission of the **[**judge**]** judicial authority who presided at the **[**applicant's**]** trial. If the judicial authority who presided at the trial is unavailable, the matter shall be assigned to any other judicial authority. The **[**judge**]** judicial authority shall authorize a transcript **[**at state expense**]** of only **[**of**]** the portions of testimony or proceedings which may be pertinent to the issues on appeal.

The sole remedy of any party desiring the court to review an order concerning the waiver of fees, costs and security shall be by motion for review under Section 66-6.

COMMENTARY: These amendments are intended to reflect the current procedure.

Sec. 63-7. Waiver of Fees, Costs and Security—Criminal Cases

Any defendant in a criminal case who is indigent and desires to appeal may, within the time provided by the rules for taking an appeal, make written application to the trial court for relief from payment of fees, costs and expenses. The application must be under oath and recite, or it must be accompanied by an affidavit reciting, the grounds upon which the applicant proposes to appeal and the facts concerning the applicant's financial status.

The application must be sent to the public defender's office for investigation. The judicial authority shall assign the request for waiver of fees, costs and expenses for hearing within twenty days after filing, and the trial counsel, the trial public defender's office to which the application had been sent for investigation and the chief of legal services of the public defender's office shall be notified in writing by the clerk's office of the date of such hearing.

The judicial authority shall act promptly on the application following the hearing. Upon determination by the judicial authority that a defendant in a criminal case is indigent, the trial court may (1) waive payment by the defendant of fees specified by statute and of taxable costs, (2) order that the necessary expenses of prosecuting the appeal be paid by the state, and (3) appoint appellate counsel and permit the withdrawal of the trial attorney's appearance provided the judicial authority is satisfied that that attorney has cooperated fully with appellate counsel in the preparation of the defendant's appeal as set forth in Section 43-33.

When the judicial authority has appointed an attorney in private practice to represent the defendant upon appeal, the attorney shall obtain the approval of the judicial authority who presided at the trial before incurring any expense **[**in excess of $100, including the expense of obtaining a transcript of the necessary proceedings or testimony**]**. If the judicial authority who presided at the trial is unavailable, the matter shall be assigned to any other judicial authority. The judicial authority

shall authorize a transcript **[**at state expense**]** of only **[**of**]** the portions of proceedings or testimony which may be pertinent to the issues on appeal.

The sole remedy of any defendant desiring the court to review an order concerning the waiver of fees, costs and security or the appointment of counsel shall be by motion for review under Section 66-6.

COMMENTARY: These amendments are intended to reflect the current procedure.

CHAPTER 66
MOTIONS AND OTHER PROCEDURES

Sec. 66-5. Motion for Rectification; Motion for Articulation

A motion seeking corrections in the transcript or the trial court record for a matter pending in the Supreme Court or Appellate Court shall be called a motion for rectification. A motion seeking an articulation of the decision of the trial court for a matter pending in the Supreme Court or Appellate Court shall be called a motion for articulation. Any motion filed pursuant to this section shall state with particularity the relief sought and shall be filed with the appellate clerk. Any other party may oppose the motion by filing an opposition with the appellate clerk within ten days of the filing of the motion for rectification or articulation. The trial court may require assistance from the parties to rectify the record or provide an articulation. Such assistance may include, but is not limited to, provision of copies of transcripts and exhibits.

The appellate clerk shall forward the motion and the opposition, if any, to the trial judge who decided, or presided over, the subject matter of the motion for a decision. If any party requests it and it is deemed necessary by the trial court, the trial court shall hold a hearing at which arguments may be heard, evidence taken or a stipulation of counsel received and approved. The trial court may make such corrections or additions as are necessary for the proper presentation of the issues. The clerk of the trial court shall list the decision on the trial court docket

and shall send notice of the court's decision on the motion to the appellate clerk, and the appellate clerk shall issue notice of the decision to all counsel of record.

Nothing herein is intended to affect the existing practice with respect to opening and correcting judgments and the records on which they are based. The trial court shall file any such order changing the judgment or the record with the appellate clerk.

Corrections or articulations made before the clerk appendix is prepared shall be included in the clerk appendix. Corrections or articulations made after the clerk appendix is prepared but before the appellant's brief is prepared shall be included in the appellant's party appendix. Corrections or articulations made after the appellant's brief has been filed, but before the appellee's brief has been filed, shall be included in the appellee's party appendix.

The sole remedy of any party wanting the court having appellate jurisdiction to review the trial court's decision on the motion filed pursuant to this section or any other correction or addition ordered by the trial court during the pendency of the appeal shall be by motion for review under Section 66-7.

Upon the filing of a motion for extension of time pursuant to Section 66-1, the appellate clerk may extend the time for filing briefs until after the trial court has ruled on a motion made pursuant to this section or until a motion for review under Section 66-7 is decided.

Any motion for rectification or articulation shall be filed at least ten days prior to the deadline for filing the appellant's brief, unless otherwise ordered by the court. If a final order has been issued for the appellant's brief, or if the appellant's brief has been filed, no motion for rectification or articulation shall be filed without permission of the court.

COMMENTARY: These amendments require that a party have a pending matter in the Supreme Court or the Appellate Court before that party may file a motion for rectification or motion for articulation.

CHAPTER 67
BRIEFS

Sec. 67-3. Page Limitations; Time for Filing Paper Briefs and Party Appendices for Filers Excluded or Exempt from Electronic Filing Pursuant to Section 60-8; Copies

Except as otherwise ordered, the brief of the appellant shall not exceed thirty-five pages and shall be filed with the party appendix, if any, within forty-five days after the delivery date of the initial transcript order by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed forty-five days after the clerk appendix is sent to the parties. Amendments to the transcript order pursuant to Section 63-4 (a) (3) or with permission of the court are not considered in determining the due date for the appellant's brief under this section.

Any party whose interest in the judgment will not be affected by the appeal and who intends not to file a brief shall inform the appellate clerk of this intent prior to the deadline for the filing of the appellee's brief. **[**In the case of multiple appellees, an**]** Any appellee who supports the position of the appellant shall **[**meet the appellant's time schedule for filing a brief**]** file their brief and party appendix, if any, on or before the due date of the appellant's brief.

Except as otherwise ordered, the brief of the appellee shall not exceed thirty-five pages, and shall be filed with any party appendix within thirty days after the filing of the appellant's brief or the delivery date of the portions of the transcript ordered only by that appellee, whichever is later.

The appellant may file a reply brief in accordance with Section 67-5A.

Where there is a cross appeal, the brief and party appendix, if any, of the cross appellant shall be combined with the brief and party appendix, if any, of the appellee. The brief shall not exceed fifty pages and shall be filed with any party appendix at the time the appellee's brief is due. The brief and party appendix, if any, of the cross appellee shall be combined with the appellant's reply brief, if any. This brief shall not exceed forty pages and shall be filed within thirty days after the filing of the original appellee's brief. The cross appellant may file a cross appellant's reply brief in accordance with Section 67-5A.

Where cases are consolidated or a joint appeal has been filed, the brief of the appellants and that of the appellees shall not exceed the page limitations specified above.

All page limitations shall be exclusive of party appendices, if any, the cover page, the table of contents, the table of authorities, the statement of issues, the signature block of counsel of record and certifications.

Briefs shall not exceed the page limitations set forth herein except by permission of the chief justice or chief judge. Requests for permission to exceed the page limitations shall be filed with the appellate clerk, stating both the compelling reason for the request and the number of additional pages sought.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional five pages for the appellant and appellee briefs, which pages are to be used for the state constitutional argument only.

COMMENTARY: These amendments clarify the time for filing briefs and party appendices.

Sec. 67-3A. Word Limitations; Time for Filing Electronic Briefs and Party Appendices

Except as otherwise ordered, the brief of the appellant shall not exceed 13,500 words. The brief shall be filed with the party appendix, if any,

either within forty-five days after the delivery date of the initial transcript order by the appellant or forty-five days after the clerk appendix is sent to the parties, whichever is later. In cases where no transcript is required or the transcript has been received by the appellant prior to the filing of the appeal, the appellant's brief and party appendix, if any, shall be filed forty-five days after the clerk appendix is sent to the parties. Amendments to the transcript order pursuant to Section 63-4 (a) (3) or with permission of the court are not considered in determining the due date for the appellant's brief under this section.

Any party whose interest in the judgment will not be affected by the appeal and who intends not to file a brief shall inform the appellate clerk of this intent prior to the deadline for the filing of the appellee's brief. **[**In the case of multiple appellees, an**]** Any appellee who supports the position of the appellant shall **[**meet the appellant's time schedule for filing a brief**]** file their brief and party appendix, if any, on or before the due date of the appellant's brief.

Except as otherwise ordered, the brief of the appellee shall not exceed 13,500 words, and shall be filed with any party appendix within thirty days after the filing of the appellant's brief or the delivery date of the portions of the transcript ordered only by that appellee, whichever is later.

The appellant may file a reply brief in accordance with Section 67-5A.

Where there is a cross appeal, the brief and party appendix, if any, of the cross appellant shall be combined with the brief and party appendix, if any, of the appellee. The brief shall not exceed 18,000 words and shall be filed with any party appendix at the time the appellee's brief is due. The brief and party appendix, if any, of the cross appellee shall be combined with the appellant's reply brief, if any. This brief shall not exceed 16,000 words and shall be filed within thirty days after the fil-

ing of the original appellee's brief. The cross appellant may file a cross appellant's reply brief in accordance with Section 67-5A.

Where cases are consolidated or a joint appeal has been filed, the brief of the appellants and that of the appellees shall not exceed the word limitations specified above.

All word limitations shall be exclusive of party appendices, if any, the cover page, the table of contents, the table of authorities, the list of trial court exhibits referenced in the brief, the statement of issues, the signature block of counsel of record, certifications and, in the case of an amicus brief, the statement of the interest of the amicus curiae required by Section 67-7A.

Briefs shall not exceed the word limitations set forth herein except by permission of the chief justice or chief judge. Requests for permission to exceed the word limitations shall be filed with the appellate clerk, stating both the compelling reason for the request and the number of additional words sought.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional 2000 words for the appellant and appellee briefs, which words are to be used for the state constitutional argument only.

COMMENTARY: These amendments clarify the time for filing briefs and party appendices, and add the list of trial court exhibits referenced in the brief to the list of items exempt from word limitations.

Sec. 67-4. The Appellant's Brief; Contents and Organization

The appellant's brief shall contain the following:

(a) A table of contents.

(b) A concise statement setting forth, in separately numbered paragraphs, without detail or discussion, the principal issue or issues involved in the appeal, with appropriate references to the page or pages of the brief where the issue is discussed, pursuant to subsection (e) hereof. Such statement shall be deemed in replacement of and shall supersede the preliminary statement of issues.

(c) A table of authorities cited in the brief, with references to the page or pages of the brief where the citations to those authorities appear. Citations shall be in the form provided in Section 67-11.

(d) A list of trial court exhibits referenced in the brief.

(e[d]) A statement of the nature of the proceedings and of the facts of the case bearing on the issues raised. The statement of facts shall be in narrative form, shall be supported by appropriate references to the page or pages of the transcript or to the document upon which the party relies and shall not be unnecessarily detailed or voluminous.

(f[e]) The argument, divided under appropriate headings into as many parts as there are points to be presented, with appropriate references to the statement of facts or to the page or pages of the transcript or to the relevant document. The argument on each point shall include a separate, brief statement of the standard of review the appellant believes should be applied.

(1) When error is claimed in the trial court's refusal to charge the jury as requested, the party claiming such error shall include in the brief of that party or the appendix thereto a verbatim statement of the relevant portions of the charge as requested and as given by the court and any relevant exceptions to the charge as given and shall recite in narrative form any evidence which it is claimed would entitle that party to the charge as requested, with appropriate references to the page or pages of the transcript.

(2) When error is claimed in the charge to the jury, the brief or appendix shall include a verbatim statement of all relevant portions of the charge and all relevant exceptions to the charge. Unless essential to review of a claimed error, a verbatim statement of the entire charge to the jury should not be included in the brief or appendix. Evidence relevant to the claimed error shall be recited in narrative form with appropriate references to the page or pages of the transcript.

(3) When error is claimed in any evidentiary ruling in a court or jury case, the brief or appendix shall include a verbatim statement of the following: the question or offer of exhibit; the objection and the ground on which it was based; the ground on which the evidence was claimed to be admissible; the answer, if any; and the ruling.

(4) When error is claimed in any other ruling in a court or jury case, the brief or appendix shall include the pertinent motion or pleading as well as any other pertinent documents which are a part of the record of the proceedings below.

(5) When the basis of an evidentiary or other ruling referred to in subsection (e) (3) or (e) (4) cannot be understood without knowledge of the evidence or proceeding which preceded or followed the ruling, a brief narrative or verbatim statement of the evidence or proceeding should be made. A verbatim excerpt from the transcript should not be used if a narrative statement will suffice. When the same ruling is repeated, the brief should contain only a single ruling unless the other rulings are further illustrative of the rule which determined the action of the trial court or establish the materiality or harmfulness of the error claimed. The statement of rulings in the brief shall include appropriate references to the page or pages of the transcript.

(g**[**f**]**) A short conclusion stating the precise relief sought.

(h**[**g**]**) The text of the pertinent portions of any constitutional provision, statute, ordinance or regulation at issue or on which the appellant relies. Such text need not be included in the brief if it is included in the appendix to the appellant's brief.

(i**[**h**]**) In appeals filed pursuant to Section 81-4, a statement identifying the version of the land use regulations filed with the appellate clerk.

(j**[**i**]**) The appellant's brief shall be organized in the following order: table of contents; statement of issues; table of authorities; list of trial court exhibits referenced in the brief; if the appeal was filed pursuant to Section 81-4, statement identifying version of land use regulations

filed with the appellate clerk; statement of facts; argument; conclusion and statement of relief requested; signature; and certification pursuant to Section 62-7.

COMMENTARY: These amendments add a list of trial court exhibits referenced in the brief to what is required to be included in the appellant's brief and redesignate subsections (d) through (i) as (e) through (j).

Sec. 67-5. The Appellee's Brief; Contents and Organization

The brief of the appellee shall contain, in a form corresponding to that stated in Section 67-4, the following:

(a) A table of contents.

(b) A counterstatement of any issue involved as to which the appellee disagrees with the statement of the appellant or a statement of any other grounds which were properly raised by an appellee under Section 63-4. Such statement shall be deemed in replacement of and shall supersede the preliminary statement of the issues.

(c) A table of authorities cited in the brief, with references to the page or pages of the brief where the citations to those authorities appear. Citations shall be in the form provided in Section 67-11.

(d) A list of trial court exhibits referenced in the brief.

(e[d]) A counter statement of any fact as to which the appellee disagrees with the statement of the appellant. The counter statement of facts shall be in narrative form and shall be supported by appropriate references to the page or pages of the transcript or to the relevant document upon which the appellee relies. An appellee may not rely on any fact unless it is set forth in the appellee's counter statement of facts or in the appellant's statement of facts or is incorporated in any brief of the parties in accordance with Section 67-4 (e) or with subsection (e) hereof.

(f[e]) The argument of the appellee, divided as provided in Section 67-4 (e). The argument on each point shall include a separate, brief statement of the standard of review the appellee believes should be applied. The argument may augment or take exception to the appel-

lant's presentation of rulings or the charge by reference to any relevant part of the court's charge or any other evidence in narrative or verbatim form which is relevant to such question, with appropriate references to the statements of facts or to the page or pages of the transcript or to the relevant document.

(g**[**f**]**) Claims, if any, directed to any rulings or decisions of the trial court adverse to the appellee. These shall be made in the manner provided in Section 67-4 (e).

(h**[**g**]**) A short conclusion stating the precise relief sought.

(i**[**h**]**) The text of the pertinent portions of any constitutional provision, statute, ordinance or regulation at issue or on which the appellee relies. Such text need not be included in the brief if it is included in the appellant's brief or appendix or in the appendix to the appellee's brief.

(j**[**i**]**) In appeals filed pursuant to Section 81-4, a statement as to whether the appellee disputes the applicability of the version of the land use regulations filed with the appellate clerk. If the appellee disputes the applicability of such regulations, it shall set forth its basis for maintaining that such regulations do not apply.

(k**[**j**]**) The appellee's brief shall be organized in the following order: table of contents; statement of issues; table of authorities; list of trial court exhibits referenced in the brief; statement of facts; argument; conclusion and statement of relief requested; signature; and certification pursuant to Section 62-7.

(*l***[**k**]**) When the appellee is also the cross appellant, the issues on the cross appeal shall be briefed in accordance with Section 67-4. In such a case, the briefs shall clearly label which sections of the brief refer to the appeal and which refer to the cross appeal.

COMMENTARY: These amendments add a list of trial court exhibits referenced in the brief to what is required to be included in the appellant's brief and redesignate subsections (d) through (k) as (e) through (*l*).

Sec. 67-5A. The Reply Brief

The appellant may file a reply brief, which should respond directly and succinctly to the arguments in the appellee's brief. The format of a reply brief shall be in accordance with Section 67-2 or 67-2A, and shall contain the following: a table of contents; a table of authorities; a list of trial court exhibits referenced in the brief; the argument, divided under appropriate headings, as needed; and a conclusion.**[**

] The reply brief shall be filed within twenty days after the filing of the last appellee's brief.

Except as otherwise ordered, the reply brief shall not exceed 6500 words for electronic filers, or fifteen pages for filers that are excluded or exempt from electronic filing pursuant to Section 60-8. Word counts and page limitations are exclusive of the cover page, the table of contents, the table of authorities, a list of trial court exhibits referenced in the brief, the signature block of counsel of record, certifications and any appendix. Requests for permission to exceed 6500 words or fifteen pages shall be filed in accordance with Section 67-3 or 67-3A.

If there is a cross appeal, the cross appellant may file a reply brief as to the cross appeal in accordance with the requirements of this rule.

Where a claim relies on the state constitution as an independent ground for relief, the clerk shall, upon request, grant an additional two pages or 800 words for the reply brief, which pages or words are to be used for the state constitutional argument only.

COMMENTARY: These amendments add language specifying the contents of the reply brief.

CHAPTER 68
CASE FILE AND CLERK APPENDIX

Sec. 68-4A. Clerk Appendix Format

The cover of the clerk appendix shall include the following in order from the top of the page: (1) the name of the court; (2) the appellate

docket number; and (3) the appellate case name. The appellate clerk shall prepare a table of contents for the clerk appendix that provides **[**giving**]** the title or nature of each document; the date the document was filed in the proceedings below, the entry number as listed on the case detail, or both; and **[**included in the clerk appendix, along with**]** the corresponding page number of the clerk appendix on which the document begins. The pages of the clerk appendix shall be numbered sequentially. **[**The date when each paper contained in the clerk appendix was filed must be stated.**]**

COMMENTARY: These amendments provide the case manager with flexibility to include, in the table of contents for the clerk appendix, either the date that the document was filed, the entry number listed on the case detail for the document, or both.

CHAPTER 72
WRITS OF ERROR

Sec. 72-2. Form

The writ of error shall clearly indicate the plaintiff in error and the defendant in error and shall contain in numbered paragraphs the facts upon which the plaintiff in error relies and a statement of the relief claimed.

COMMENTARY: This amendment was made for purposes of clarification.

Sec. 72-3. Applicable Procedure

(a) The writ of error, if in proper form, shall be allowed and signed by a judge or clerk of the court in which the judgment or decree was rendered. The writ of error shall be presented for signature within twenty days of the date notice of the judgment or decision complained of is given but shall be signed by the judge or clerk even if not presented in a timely manner. Failure without cause to present the writ of error in a timely manner may be a ground for dismissal of the writ of error by the court having appellate jurisdiction.

(b) The writ of error shall be served and returned as other civil process, except that the writ of error shall be served at least ten days before the return day and shall be returned to the appellate clerk at least one day

before the return day. The return days are any Tuesday not less than twelve nor more than thirty days after the writ of error is signed by a judge or clerk of the court.

(c) The writ of error shall be deemed filed the day it is properly returned to the appellate clerk. The plaintiff in error shall return the writ of error to the appellate clerk by (1) complying with Section 60-7 or 60-8 by paying the required fee, submitting a signed application for waiver of fees and the order of the trial court granting the fee waiver, or certifying that no fees are required; (2) submitting the matter in accordance with the provisions of Section 63-3; and (3) submitting the allowed and signed writ of error and the signed marshal's return to the appellate clerk.

(d) An electronically filed writ of error will be docketed upon the submission of the matter in accordance with Section 63-3 but will be rejected upon review by the appellate clerk if the plaintiff in error fails to comply with Section 60-7 or to submit an allowed and signed writ of error and the signed marshal's return on the same business day the matter is submitted in accordance with the provisions of Section 63-3. The writ of error may also be returned upon review by the appellate clerk for noncompliance with the Rules of Appellate Procedure. The appellate clerk shall **[**forthwith**]** give notice to all parties of the filing of the writ of error.

(e) If the writ of error is brought against a judge of the Superior Court to contest a summary decision of criminal contempt by that judge, the defendant in error shall be the Superior Court. In all other writs of error, the writ of error shall bear the caption of the underlying action in which the judgment or decision was rendered. All parties to the underlying action shall be served in accordance with Chapter 8 of these rules.

(f) Within ten days of filing a writ of error, the plaintiff in error shall file with the appellate clerk:

(1) A certificate stating that no transcript is deemed necessary or a transcript order confirmation from the official court reporter in compli-

ance with Section 63-4 (a) (3). If any other party deems any other parts of the transcript necessary that were not ordered by the plaintiff in error, that party shall, within twenty days of the filing of the plaintiff in error's transcript papers, file a transcript order confirmation for an order placed in compliance with Section 63-8.

(2) A docketing statement in compliance with Section 63-4 (a) (4). If additional information is or becomes known to, or is reasonably ascertainable by the defendant in error, the defendant in error shall file a docketing statement supplementing the information required to be provided by the plaintiff in error.

[(g) Within twenty days of filing a writ of error, the plaintiff in error shall file with the appellate clerk such documents as are necessary to present the claims of error made in the writ of error, including pertinent pleadings, memoranda of decision and judgment file, accompanied by a certification that a copy thereof has been served on each counsel of record in accordance with Section 62-7.

(h) Within ten days of the filing by the plaintiff in error of the documents referred to in subsection (g) of this rule, the defendant in error may file such additional documents as are necessary to defend the action, accompanied by a certification that a copy thereof has been served on each counsel of record in accordance with Section 62-7.**]**

(**[**i**]** g) Answers or other pleas shall not be filed in response to any writ of error. No amended writ of error may be filed without leave of the court having appellate jurisdiction.

(**[**j**]** h) No clerk appendix is prepared for a writ of error. Except as provided in this subsection, **[**B**]**briefing **[**is**]** shall be in accordance with Section 67-1 et seq. in which the rules applicable to appellants shall apply to plaintiffs in error, and the rules applicable to appellees shall apply to defendants in error. The plaintiff in error is required to file a party appendix that includes the documents necessary to present the claims of error made in the writ of error, including pertinent pleadings

and memoranda of decision. The defendant in error may file a party appendix that includes any additional documents as are necessary to defend the action.

COMMENTARY: These amendments were made for purposes of clarification, eliminated subsections (g) and (h) and redesignated subsections (i) and (j) as (g) and (h).

CHAPTER 73
RESERVATIONS

Sec. 73-2. Consideration of Reservation Request by Superior Court

If the Superior Court determines that a reservation would be appropriate, it shall forward the reservation request with its determination, which shall include the items specified in Section 73-1 (a), to the appellate clerk and to all parties of record. The Supreme Court or Appellate Court shall either **[**preliminarily**]** accept or decline the reservation request, but may later reject the reservation if it should appear to have been improvidently granted. The Supreme Court or Appellate Court will not entertain a reservation unless the question or questions presented are reasonably certain to enter into the decision of the case and it appears that their determination would be in the interest of simplicity, directness and judicial economy. The Supreme Court or Appellate Court may also request that the Superior Court provide additional facts required for a decision upon the questions reserved and to clarify such questions when necessary.

COMMENTARY: This amendment was made for purposes of procedural clarification.

Sec. 73-3. Procedure upon Acceptance of Reservation

(a) The appellate clerk shall notify the clerk of the trial court and the parties of the decision or order on the reservation request. Within twenty days of issuance of the notice **[**of an order of preliminary acceptance**]** that the reservation has been accepted, the **[**appellant**]** plaintiff shall file the reservation in accordance with the provisions of Section 63-3

for filing appeals, except that no entry fee shall be paid and no costs shall be taxed in favor of any party. **[**In addition, within ten days of the filing of the appeal, the appellant shall file**]** All proceedings subsequent to the filing of the matter shall be governed by the rules applicable to appeals except that no Section 63-4 (a) papers shall be filed, other than a docketing statement **[**in the form specified in**]** pursuant to Section 63-4 (a) (4), and the time for filing briefs and party appendices shall be governed by Section 73-4.

(b) The plaintiff in the court that ordered the reservation shall be deemed the appellant, and the defendant in such court shall be deemed the appellee for purposes of these rules, unless otherwise ordered by the court.

(c) The advice of the Appellate Court on a reservation may be reviewed by the Supreme Court only upon the granting of certification as provided in Chapter 84.

COMMENTARY: These amendments were made for purposes of procedural clarification.

Sec. 73-4. Briefs, Appendices and Argument

Clerk appendices are not prepared for matters filed pursuant to this chapter. Briefs and party appendices filed by the parties shall conform to the rules set forth in Chapter 67, except that the parties shall file initial briefs and appendices within forty-five days of issuance of the notice of **[**an**]** the order of **[**preliminary**]** acceptance. A party wishing to file a reply brief must do so within twenty days of the filing of the last initial brief. Extensions of time will not be granted except for extraordinary cause. The Supreme Court or Appellate Court may assign reservations without the matter appearing on the docket and before reply briefs are filed.

Oral argument shall be as provided in Chapter 70, unless otherwise ordered by the court.

COMMENTARY: These amendments were made for purposes of procedural clarification.

CHAPTER 76
APPEALS IN WORKERS' COMPENSATION CASES

Sec. 76-2. Filing Appeal

The appeal shall be filed with the appellate clerk in accordance with the provisions of Section 63-3. The appellant shall deliver a copy of the appeal form to each party of record in accordance with the provisions of Section 62-7 and to the **[**b**]**Board or the administrative law judge, as appropriate.

The appellate clerk shall deliver a copy of the appeal form to the **[**b**]** Board or the administrative law judge, as appropriate**[**, and to each appearing party**]**.

COMMENTARY: These amendments were made to reflect the current practice of the Workers' Compensation Commission.

Sec. 76-3. Preparation of Case File; Transcripts and Exhibits

Within ten days of the issuance of notice of the filing of an appeal, the **[**b**]**Board or the administrative law judge, as appropriate, shall deliver to the appellate clerk an electronic copy of the file and the transcripts of any hearings and the exhibits that were before the Board or the administrative law judge. No omissions may be made from the case file except upon the authorization of the appellate clerk. Each document of the case file must be numbered, and the file must include a table of contents listing each item entered in the file according to its number.

Any party that intends to order transcripts of the proceedings before the Board shall file a certificate regarding transcript as required by Section 63-4 (a) (3). The transcripts shall be ordered in accordance with the provisions of Section 63-8, except that the order shall be placed through the appropriate hearing reporter and the Board.

[All exhibits before the board or the administrative law judge are deemed exhibits on appeal. The appellate clerk shall notify the board or the administrative law judge of the exhibits required by the court. It

shall be the responsibility of the board or the administrative law judge to transmit those exhibits promptly to the appellate clerk.

Nothing in this section relieves the appellant and the appellee of their duty to comply with the appendix requirements of Section 67-8.**]**

COMMENTARY: These amendments were made to reflect the current practice of the Workers' Compensation Commission.

CHAPTER 77
PROCEDURES CONCERNING COURT CLOSURE AND SEALING ORDERS OR ORDERS LIMITING THE DISCLOSURE OF FILES, AFFIDAVITS, DOCUMENTS OR OTHER MATERIAL

Sec. 77-2. Sealing Orders; Treatment of Lodged Records

(a) When, by order of the trial court or by operation of statute, a trial court file is sealed or is subject to limited disclosure, all filings with the appellate clerk in that matter shall be treated similarly unless otherwise ordered by the court having appellate jurisdiction. Any sealing or limitation on disclosure ordered by the trial court or required by operation of statute as to any affidavit, document or other material filed in the trial court shall continue throughout the appellate process.

(b) If a party includes material in a brief or party appendix that is sealed or subject to limited disclosure, that party shall file a redacted brief and party appendix, if any, to be made available to the public, and an unredacted brief and party appendix, if any, to be made available to only the parties and the court. Both the redacted and unredacted brief and appendix shall be filed in accordance with the applicable provisions of Section 67-2 or Section 67-2A and shall clearly state on the cover which brief is unredacted and which brief is redacted. Prior to filing, counsel of record shall file a letter notifying the court that the briefs and party appendices, if any, will be filed pursuant to this subsection. This subsection shall not apply to briefs or party appendices filed in child protection matters pursuant to Section 79a-6, or where the only

redacted material are names or other personal identifying information that is prohibited from disclosure by rule, statute, court order or case law.

(c) If a claim is raised on appeal challenging the denial of a motion to seal or limit disclosure pursuant to Section 7-4B (d), a lodged record shall remain conditionally under seal in the court having appellate jurisdiction and shall be treated as an exhibit pursuant to the provisions of Section 68-1.

COMMENTARY: The primary purpose of these amendments is for parties to designate on the cover of briefs that the brief is either redacted or unredacted.

CHAPTER 82
CERTIFIED QUESTIONS TO OR FROM COURTS OF OTHER JURISDICTIONS

Sec. 82-4. Preparation of Certification Request

The certification request shall be prepared by the certifying court, signed by the judge presiding at the hearing, and forwarded to the Supreme Court by the clerk of the certifying court under its official seal. Upon receipt of the certification request, the appellate clerk shall notify the parties who shall be allowed a period of ten days from the date of such notice to file objections to the acceptance of the certification request. The Supreme Court shall either **[**preliminarily**]** accept or decline the certification request. The appellate clerk shall notify the clerk of the court requesting certification and all parties of the decision or order on the certification request. **[**If the Supreme Court preliminarily accepts the certified question, the plaintiff in the court that requested certification shall be deemed the appellant, and the defendant in such court shall be deemed the appellee unless otherwise ordered by the Supreme Court.**]**

The Supreme Court may later reject the certification if it should appear to have been improvidently granted. The Supreme Court may decline to answer the questions certified whenever it appears that the questions have been improperly framed, the necessary facts have not been fully

set forth, or, for any other reason, certification has been improvidently granted. The Supreme Court may also request that the certifying court provide additional facts required for a decision upon the questions certified and clarify such questions when necessary. If the Supreme Court grants the certification request, it may require the **[**appellant**]** parties to file those portions of the record that the Supreme Court deems necessary to answer the certified questions.

COMMENTARY: These amendments were made for purposes of procedural clarification.

Sec. 82-5. [Receipt] Procedure on Acceptance of Certified Question; Costs of Certification

Within twenty days of issuance of the notice **[**of an order of preliminary acceptance**]** that the certified question(s) have been accepted, the **[**appellant**]** plaintiff shall file the matter in accordance with the provisions of Section 63-3 for filing an appeal and shall pay all required fees in accordance with Section 60-7 or 60-8. After paying the filing fee, the **[**appellant**]** plaintiff shall be entitled to seek reimbursement from the **[**appellee**]** defendant for one half of the filing fee, unless otherwise ordered by the court that requested certification. The plaintiff in the court that requested certification shall be deemed the appellant, and the defendant shall be deemed the appellee. All proceedings subsequent to the filing of the matter shall be governed by the rules applicable to appeals except **[**as to**]** that no Section 63-4 (a) papers shall be filed, other than a docketing statement pursuant to Section 63-4 (a) (4), and the time for filing briefs and party appendices shall be governed by Section 82-6. No security or recognizance shall be required, and no costs shall be taxed in favor of either party.

COMMENTARY: These amendments were made for purposes of procedural clarification.

Sec. 82-6. Briefs, Appendices, Assignment and Argument

Clerk appendices are not prepared for matters filed pursuant to this chapter. Briefs and party appendices, if any, filed by the parties shall conform to the rules set forth in Chapter 67, except that the parties shall

file initial briefs and appendices within forty-five days of issuance of the notice of **[**an**]** the order of **[**preliminary**]** acceptance. A party wishing to file a reply brief must do so within twenty days of the filing of the last initial brief. Extensions of time will not be granted except for extraordinary cause. The Supreme Court may assign certified questions without the matter appearing on the docket and before reply briefs are filed.

Oral argument shall be as provided in Chapter 70, unless otherwise ordered by the court.

COMMENTARY: These amendments were made for purposes of procedural clarification.

CHAPTER 84
APPEALS TO SUPREME COURT BY CERTIFICATION FOR REVIEW

Sec. 84-1. Certification by Supreme Court

No appeal may be taken from a final decision of the Appellate Court to the Supreme Court unless the Supreme Court grants certification. When an appeal is decided by the Appellate Court or when the Appellate Court denies a motion to file a late appeal, an aggrieved party may petition the Supreme Court for certification to appeal. If certification is granted, the petitioner may file an appeal to the Supreme Court. Failure to obtain an order from the Supreme Court granting certification will result in the rejection of the appeal to the Supreme Court.

COMMENTARY: This amendment allows a party to file a petition for certification to appeal from the denial of a motion to file a late appeal in the Appellate Court, in accordance with the recent amendment to General Statutes § 51-197f. See Public Acts 2025, No. 25-91, § 14.

CHAPTER 85
SANCTIONS

Sec. 85-2. Other Actions Subject to Sanctions

Actions which may result in the imposition of sanctions include, but are not limited to, the following:

(1) Failure to comply with rules and orders of the court.

(2) Filing of any papers which unduly delay the progress of an appeal.

(3) Presentation of unnecessary or unwarranted motions or opposition to motions.

(4) Presentation of unnecessary or unwarranted issues on appeal.

(5) Presentation of a frivolous appeal or frivolous issues on appeal.

(6) Presentation of a frivolous defense or defenses on appeal.

(7) Failure to attend preargument settlement conferences.

(8) Failure to appear at oral argument.

(9) Disregard of rules governing withdrawal of appeals.

(10) Repeated failures to meet deadlines.

(11) Failure to independently verify all citations and legal authorities produced by generative AI in compliance with Sections 4-9 and 62-6 (d).

Offenders will be subject, at the discretion of the court, to appropriate discipline, including the prohibition against appearing in the court or filing any papers in the court for a reasonable and definite period of time, the imposition of a fine pursuant to General Statutes § 51-84, and costs and payment of expenses, together with attorney's fees to the opposing party.

The sanction of prohibition against filing any papers in the court shall not prevent an offender from filing a motion for reconsideration of that sanction within seven days.

Offenders subject to such discipline include both counsel and self-represented parties and, if appropriate, parties represented by counsel.

COMMENTARY: The purpose of this amendment is to address the use of generative artificial intelligence (generative AI) in court filings.